

And miles to go...

A year has passed since the enactment of the Information Technology Act, 2000.

What has and has not happened in the first year of the IT Act 2000?

Manu Khanna and Shonal Gupta get the viewpoints of some prominent people

The enactment of the IT Act was indeed a shot in the arm for the IT industry. It was supposed to provide just the environment required to achieve the long cherished dream of modern India—making India an IT superpower. The bill provides the basic

Phiroz Vandrewala

Chairman,
Nasscom



that they are valid in a court of law. With respect to security, digital signature scores over a hand-written signature as one can claim the latter to be forged and therefore not valid.

The appointment of a Controller to invite applications for, appoint and eventually oversee the functioning of Certifying Authorities is a clear indication that the government is prepared

“The government is prepared to do all that it can to ensure successful implementation of the IT Act within the shortest possible time”

What do you think? Come, speak your mind at www.yahoo.co.in

framework for giving legality to digital records and signatures. This will allow Indian businesses to transact over the Web freely, thereby enabling an effective reduction in communication costs and more importantly, increasing competitiveness in the market. The Indian consumer can now shop for products and services from Web sites at their convenience and in a secure manner.

The implementation of the IT Act 2000, has led to a number of positive results. Most significant of them has been bringing digital signatures on par with paper signatures so

to do all that it can to ensure successful implementation of the IT Act and that too within the shortest possible time.

Even though there has been some criticism of certain areas in the Act, the fact that the e-commerce transactions and cyber-crimes are still in their infancy in the Indian context means that it would have been quite impossible for any Act to have been comprehensive. Over the past year, India has definitely made a good beginning by realising the potential of the Internet and creating a conducive environment for conducting business on the Web. ■

The last one year has demonstrated that the initial hurry in passing the Act was not accompanied by appropriate swift action for its effective implementation.

Take the issue of digital signatures. Recently, the government appointed a Controller and Deputy Controller of Certifying Authorities to establish the basic framework for mak-

“Crimes such as cyber stalking and credit card fraud do not find mention in the IT Act...the government is still defining the scope of the law”

ture. If nothing else, this shows the slackness on the part of the government. The IT Act 2000 isn't just about e-commerce, it has another role to play; to target the new forms of cyber crimes. Crimes such as cyber stalking and credit card fraud are inherently incapable of

Pavan Duggal

Advocate, Supreme Court of India
and Cyberlaw Consultant



ing the concept of digital signature feasible and completely secure. The government has invited applications from companies willing to become Certifying Authorities, but nothing concrete has happened till now.

The other area of concern is the issue of electronic records. The Cyber Regulations Advisory Committee (CRAC) was assigned the task of prescribing and eventually specifying the electronic form, which will replace the paper forms currently being used in most government offices. Even after several meetings, it is yet to come up with the basic struc-

being covered by the provisions of the IPC. Though these had emerged as a reality by the time the IT Act was passed, they do not find mention in the IT Act. Same goes for electronic payments, online Intellectual Property Rights, online consumer protection, domain name issues, to name just some of the areas not covered in the Act.

The Indian IT industry expected a lot more of the Indian IT Act 2000. Surprisingly enough, the government is still defining the scope or provisions or the law. The IT Act at present does not provide any standards for its actual implementation. ■

www.yahoo.co.in

Catch 'em live on Yahoo!

Pavan Duggal on August 14 at 4 p.m.

